



CHAPTER cxxxi.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 relating to Musselburgh Portpatrick and Wishaw. A.D. 1904.

[22nd July 1904.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act:

45 & 46 Vict.
c. 50.
51 & 52 Vict.
c. 12.
53 & 54 Vict.
c. 13.
2 Edw. 7.
c. 35.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 5) Act 1904. Short title.

2. The several Orders as set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Orders in schedule confirmed.

A.D. 1904.

SCHEDULE.

LIST OF ORDERS.

1. MUSSELBURGH.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the National Electric Construction Company Limited.
 2. PORTPATRICK.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Portpatrick Electric Supply Company Limited.
 3. WISHAW.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Provost Magistrates and Councillors of the Burgh of Wishaw.
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MUSSELBURGH ELECTRIC LIGHTING.

A. D. 1904.

Musselburgh.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the National Electric Construction Company Limited in respect of the Burgh of Musselburgh in the County of Edinburgh.

1. This Order may be cited as the Musselburgh Electric Lighting Order Short title.
1904.

2. The Musselburgh Electric Lighting Order 1899 is hereby repealed without prejudice to anything done or suffered thereunder.

3. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order.

4. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the National Electric Construction Company Limited whose registered office is at No. 34 Victoria Street in the county of London.

5. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

6. The Undertakers shall lay down suitable and sufficient distributing mains for the purposes of general supply within a period of one year after the commencement of this Order throughout the streets and parts of streets mentioned in the Second Schedule to this Order and shall thereafter maintain those mains.

7. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Third Schedule to this Order and the railway which is also mentioned in that schedule.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

9. The sum to be deposited or secured in pursuance of section 5 of the Deposit schedule to the Electric Lighting (Clauses) Act 1899 is five hundred pounds.

[Ch. cxxxi.] *Electric Lighting Orders Confirmation* [4 Edw. 7.]
(No. 5) Act, 1904.

A.D. 1904.

Musselburgh.
Power to
transfer
undertaking.

10. At any time within one year after the commencement of this Order the Undertakers may with the consent of and upon such terms and conditions as may be approved by the Board of Trade transfer the undertaking authorised by this Order to the Musselburgh and District Electric Light and Traction Company Limited and on such transfer the rights powers authorities obligations and liabilities of the Undertakers shall be transferred to and may be exercised by and shall attach to the transferees who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Purchase by
local authority.

11.—(1) The local authority may if they think fit within six months before the eleventh day of August in the years one thousand nine hundred and seventeen one thousand nine hundred and twenty-four or one thousand nine hundred and thirty-one require the Undertakers to sell and thereupon the Undertakers shall sell to them their undertaking including all the land buildings works material and plant suitable to and used by the Undertakers for the purpose of the undertaking and the goodwill of the undertaking.

(2) The price to be paid on any such purchase shall be—

(a) A sum equal to the actual cost of the land buildings works material and plant purchased after deducting a reasonable sum for depreciation ; and

(b) In respect of goodwill an additional sum equal—

(i) in the case of a purchase in the year one thousand nine hundred and seventeen to the net profits of the undertaking during the four years immediately preceding the purchase ; and

(ii) in the case of a purchase in the year one thousand nine hundred and twenty-four to the net profits of the undertaking during the two years immediately preceding the purchase ; and

(iii) in the case of a purchase in the year one thousand nine hundred and thirty-one to the net profits of the undertaking during the year immediately preceding the purchase.

(3) If any question arises as to the price to be paid on any such purchase that question shall be referred to arbitration and if any other question arises with regard to the purchase that question may be settled by the Board of Trade and that Board may also in default of agreement as to the date on which the purchase is to take effect fix that date.

(4) On the date on which the purchase takes effect the undertaking including the said land buildings works material and plant shall vest in the local authority freed from any debts mortgages or similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity under the principal Act or this Order shall absolutely cease and determine and shall vest in the local authority.

(5) Nothing in this section shall affect the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

12. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

A.D. 1904.
Musselburgh.
Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the burgh of Musselburgh as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of One Year after the commencement of this Order.

Fisherrow High Street Bridge Street Musselburgh High Street.

THIRD SCHEDULE.

List of Streets not repairable by the Local Authority and Railway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

STREETS :—

Mitchell Street Mitchell Place Bellfield Avenue West Holmes Gardens
Carlisle Place Downie Place Mountjoy Terrace Watts Close Ronald Close
McDonald's Close Inveravon Terrace Windsor Gardens.

RAILWAY :—

The level crossing on the North British Railway at Edinburgh Road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

[Ch. cxxxi.] *Electric Lighting Orders Confirmation* [4 Edw. 7.]
(No. 5) Act, 1904.

A.D. 1904.

SECTION 1.

Musselburgh.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him for each unit fivepence ; or

At the option of the consumer—

- (i) For any amount not exceeding the equivalent of ninety-one hours of supply at the maximum power which has been demanded by him at the rate of sevenpence per unit ; and
- (ii) For any further quantity exceeding the equivalent of ninety-one hours of supply at such maximum power at the rate of fourpence per unit.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

PORTPATRICK ELECTRIC LIGHTING.

Portpatrick. *Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Portpatrick Electric Supply Company Limited in respect of part of the Parish of Portpatrick in the County of Wigtown.*

Short title. 1. This Order may be cited as the Portpatrick Electric Lighting Order 1904.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order.

Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Portpatrick Electric Supply Company Limited a company registered under the Companies Acts 1862 to 1900 whose registered office is situate at Dunskey Estates Office Portpatrick.

Area of supply. 4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act

[4 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxxxi.]
(No. 5) Act, 1904.

1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. A.D. 1904.
Portpatrick.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order. Power to break
up streets.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. Compulsory
works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum
prices.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is one hundred pounds. Deposit.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order. Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

So much of the parish of Portpatrick as is comprised within a radius of two miles from the north-west corner of the Parish Church of Portpatrick :

Provided that in case of difference between the above description and the area as delineated on the deposited map the latter shall prevail.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

The unnamed road leading from Stranraer Road at Dinvin Mill Dam past the United Free Church Manse and Fernhill on to Admiralty new feu

[Ch. cxxxi.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 5) Act, 1904.

A.D. 1904.

Portpatrick.

at Old Battery the unnamed road leading from Holm Street past Braefield to its junction with the said unnamed road leading from Stranraer Road to Admiralty new feu at Old Battery the unnamed road leading from the junction of Dinvin Street and Blair Street on to Mansewood St. Patrick Street Hill Street (upper portion from Mr. Brownlies' feu) the unnamed road leading from the Post Office past Mount Stewart under railway bridge to Castle Croft Dunskey Street the unnamed road leading from "Slap of the Quarry" past the Drill Hall on to the Quarry the unnamed road leading from School Gate to its junction with the road leading from Dinvin Mill past the Cemetery to Port of Spittal the roadway of the bridge carrying the unnamed road leading from School Gate to Common Croft over the railway belonging to the Portpatrick and Wigtownshire Joint Railway Committee and the approaches thereto the unnamed roads and the roadways on the piers round the harbours at Portpatrick the unnamed private road from the junction therewith of the said unnamed road leading from Stranraer Road to Admiralty new feu at Old Battery to the Golf House.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Holm Street Main Street small portion of road joining Main Street and Hill Street at Downshire Arms Hotel South Crescent North Crescent Blair Street.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

A.D. 1904.

Portpatrick.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

WISHAW ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to the Provost Magistrates and Councillors of the Burgh of Wishaw in respect of the Burgh of Wishaw in the County of Lanark.

Wishaw.

1. This Order may be cited as the Wishaw Electric Lighting Order 1904. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the provost magistrates and councillors of the burgh of Wishaw.

Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways and tramways which are also mentioned in that schedule.

Power to break
up streets &c.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.